

23CHCV00683 23CHCV00683

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Case Number: 23CHCV00683 Hearing Date: July 6, 2026 Dept: F43

Dept. F43

Hearing Date: 07-06-26

Case # 23CHCV00683, Thompson, et
al. v. White House Recovery and Detox, LLC, et al.

Trial Date: 01-11-27

MOTION TO COMPEL DEPOSITION
OF PERSON MOST KNOWLEDGEABLE

MOVING PARTIES: Plaintiffs Cecilia Thompson and Brett
Thompson, individually and as successors-in-interest to the Estate of Colin
Thompson

RESPONDING PARTY: Defendant Vanity Wellness Center, Inc.

RELIEF REQUESTED

Order compelling defendant Vanity Wellness
Center, Incorporated to attend and testify at a deposition and to impose \$3,470
in monetary sanctions against defendant Vanity Wellness.

RULING: Motion is moot. The court awards Plaintiffs \$1,985 in
monetary sanctions.

SUMMARY OF ACTION

On March 9, 2023, plaintiffs Cecilia Thompson and Brett Thompson (Plaintiffs) filed this wrongful death and survival action. Plaintiff filed a First Amended Complaint on October 13, 2023, asserting claims against defendants White House Recovery and Detox, LLC, White House Recovery, LLC, Vanity Wellness Center, Incorporated (Vanity), and Kyle Perez. Plaintiffs allege their deceased son, Colin Thompson, was in the care of defendant White House Recovery, LLC and other defendants when he overdosed and passed away. Plaintiffs assert dependent adult abuse, negligence, wrongful death, and survival action.

Vanity filed and served an answer to the First Amended Complaint on January 5, 2024.

On January 8, 2024, Vanity filed a cross-complaint against its co-defendants seeking indemnity and declaratory relief.

On May 28, 2025, Plaintiffs electronically served a deposition notice on defendant Vanity to depose Vanity's person most knowledgeable (PMK) on June 23, 2025 at 10:00 a.m. (Declaration of Barret T. Alexander ¶ 6, Exh.

C at p. 9.) Vanity served objections on June 18, 2025. (Alexander Decl. ¶ 7, Exh. D.) The next day, Plaintiffs'

counsel agreed to re-notice the deposition if Vanity provided alternate dates by close of business that day. (Id.

¶ 8, Exh. E at p. 1.) Defense counsel

did not respond before the noticed deposition, Vanity failed to appear at the deposition, and Plaintiffs took a non-appearance on the record. (Id. ¶ 9, Exh. F.) On June 23, 2025 at 1:07 p.m., the day of the

deposition, defense counsel stated he was working on alternate deposition dates, would send them to plaintiffs' counsel soon, and asked if the deposition could be conducted by Zoom. (Id.

¶ 8, Exh. E at p. 1.) Three days later,

plaintiffs' counsel emailed defense counsel asking for alternate dates. (Id., Exh. G at p. 1.)

On August 15, 2025, Plaintiffs served a

second PMK deposition notice on Vanity for August 29, 2025 at 10:00 a.m. (Alexander Decl. ¶ 11, Exh. H.) On August 25, 2025, defense counsel identified

a PMK and stated he was available on September 16, 2025 at 10:30 a.m. by Zoom. (Id., Exh. I at p. 1.)

On August 27, 2025, Plaintiffs served a third

PMK deposition notice on Vanity for September 16, 2025 at 10:00 a.m. (Alexander Decl., Exh. J.) The day before the deposition, defense

counsel sent an email, representing the need to reschedule the deposition, not having many answers, the inability to reach his client for several days, and having “no idea what’s going on.” (Id., Exh. K at p. 1.) Plaintiffs took a certificate of non-appearance at the September 16, 2025, deposition. (Id. ¶ 16, Exh. 15.)

On September 23, 2025, Plaintiffs filed the instant motion to compel Vanity to attend and testify at a deposition and to pay \$3,470 in monetary sanctions. The hearing was originally scheduled for December 30, 2025.

The court record demonstrates Plaintiffs continued the instant motion hearing four times.[1]

Vanity filed an opposition on May 5, 2026. In opposition, Vanity asserts the motion is moot because the first volume of the PMK deposition was completed on January 12, 2026. The parties agreed to meet and confer about the second PMK deposition, but Plaintiffs unilaterally scheduled the second PMK deposition to April 22, 2026.

Vanity objected to the date and provided alternate dates: May 28, 2026, or June 3, 4, and 5, 2026. To date, Plaintiffs have not re-noticed the second PMK deposition.

No reply has been filed.

MEET AND CONFER

A motion to compel a deposition must include either a meet and confer declaration or, “when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, . . . a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance.” (Code Civ. Proc., §§ 2025.450, subd. (b), 2016.040.) In Department F43, meet and confer means in person or via phone. A letter or email does not suffice. (Department F43 Courtroom Information, p. 2.)

It appears from the moving papers that the

parties did not directly meet and confer until after Plaintiffs filed the instant motion. At most, counsel exchanged emails and documents.

(Alexander Decl. ¶¶ 6-15.) If

there was a direct meet and confer after Plaintiffs filed their motion, it appears the parties were able to agree (1) the PMK deposition would consist of two volumes; (2) volume one would and did occur on January 12, 2026; and (3)

counsel would confer about scheduling volume two. (Declaration of Arthur Villegas ¶ 2.) However, the opposition does not state

whether a direct meet and confer has occurred since the first deposition, and no reply was filed providing further information about Plaintiffs' meet and confer efforts.

Therefore, the court finds that the "meet and confer" requirement was not met before the motion was filed.

ANALYSIS

A. Compelling

the Deposition of a Person Most Knowledgeable Deposition

An oral deposition shall be scheduled for a date at least 10 days after service of the deposition notice." (Code Civ. Proc., § 2025.270, subd.

(a).) A properly served deposition

notice is effective to require a party or party-affiliated deponent to attend and to testify, as well as to produce documents for inspection and copying.¿

(Code Civ. Proc., § 2025.280, subd. (a).)

A party may depose an entity such as a

corporation, partnership, or governmental agency by examining an agent or

officer designated to testify on the entity's behalf. (Code Civ. Proc., § 2025.010.) If the deposition notice is served on an entity, the notice must describe the matters on which questions will be asked

must be described "with reasonable particularity." (Code Civ. Proc., § 2025.230.) The entity is under a duty to designate and produce the officers, directors, managing agents or employees "most qualified" to testify on its behalf. (Ibid.) "The person or persons designated by the entity must testify to the extent of any information known or reasonably available to the deponent [entity]."

(Code Civ. Proc., § 2025.230.)

Further, when a request for documents is made, the witness or someone in authority "is expected to make an inquiry of everyone who might be holding

responsive documents or everyone who knows where such documents might be held.” (Maldonado v. Superior Court (2002) 94 Cal.App.4th 1390, 1396.)

“If, after service of a deposition notice, a party . . . without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document . . . described in the deposition notice, the party giving notice may move for an order compelling deponent’s attendance and testimony, and the production . . . of any document . . . described in the deposition notice.”² (Code Civ. Proc., § 2025.450, subd. (a).)³ The motion must set forth both facts showing good cause justifying the demand for any documents and a meet and confer declaration.⁴ (Code Civ. Proc., § 2025.450, subds. (b)(1)-(2).)

As stated above, the moving papers do not indicate the “meet and confer” requirement was met before this motion was filed.

Moreover, it appears counsel was able to complete volume one of the PMK deposition on January 12, 2026, and the parties agreed to meet and confer to schedule volume two. Plaintiffs provide no insight into whether “meet and confer” attempts were made before Plaintiffs unilaterally noticed volume two for April 22, 2026. (Villegas Decl. ¶ 2.) Nor do Plaintiffs oppose Vanity’s claims that no such meet and confer occurred and that Vanity provided four alternative dates. (Id. ¶ 3.)

Because the parties were able to schedule and complete the first volume of the PMK deposition before the hearing on this motion and the parties agreed to meet and confer further about scheduling the second volume, Plaintiffs’ motion is moot.

Although the motion is moot, the court still awards Plaintiffs sanctions because Plaintiffs were forced to file this motion in order for Vanity to submit to an agreed upon deposition date. (See Masimo Corp. v. Vanderpool Law Firm, Inc. (2024) 101 Cal.App.5th 902, 909 fn. 9 “[F]orcing a party to resort to the court to get discovery is . . . sanctionable behavior.”.)

B. Sanctions

Plaintiffs asks the court to impose \$3,470 in monetary sanction against defendant Vanity.
(Alexander Decl. ¶ 22.)

The court may impose sanctions against a “party-affiliated” deponent who fails to appear or produce the request materials requested in the deposition notice.
(Code Civ. Proc., §§ 2025.450, subds. (a), (g)(1), 2025.480, subd. (j).) The court must impose monetary sanctions “against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust” or the prevailing party failed to make reasonable efforts to resolve the issues. (Code Civ. Proc., §§ 2025.450, subd. (g)(1), 2023.030, subd. (a).)

Plaintiffs’ counsel charges \$550 per hour. (Alexander Decl. ¶ 22.) The request includes: (1) 4.0 hours preparing the motion—\$2,200; (2) 1.0 reviewing an opposition—\$550; (3) 1.0 hour replying—\$550; and (4) a \$60 filing fee. The request totals \$3,360 rather than \$3,470.

The court finds the hourly rate is reasonable but the time requested is excessive because no reply was filed and Plaintiffs have failed to demonstrate the “meet and confer” requirement is met.

Therefore, the court awards Plaintiffs monetary sanctions in the reduced amount of \$1,985: (1) 2.5 hours preparing the motion—\$1,375; (2) 1.0 reviewing an opposition—\$550; and (3) a \$60 filing fee.

CONCLUSION and ORDER

Motion is moot.

The court awards Plaintiffs \$1,985 in monetary sanctions. Defendant Vanity Wellness Center, Inc. is ordered to pay Plaintiffs’ counsel within thirty (30) days of this order.

Plaintiffs to give notice.

[1] Plaintiffs continued the hearing one final time on May 6, 2026, the day after Vanity filed its opposition to the instant motion.